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No. 98-376

In the Supreme Court of the United States

OCTOBER TERM, 1997

WARNER JACKSON, ET AL., PETITIONERS,

v.

JOHN T. BENSON, ET AL., RESPONDENTS.

On Petition for Writ of Certiorari to the Supreme Court of Wisconsin

BRIEF FOR MILLER RESPONDENTS AND REPRESENTATIVE ANNETTE "POLLY" WILLIAMS IN OPPOSITION

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QUESTION PRESENTED

Whether the Establishment Clause permits a State to enact an experimental educational program for the benefit of low-income children in its most economically depressed city, under which eligible children are provided up to their per capita share of the state education fund to pay the costs of attending the accredited school of their choice, whether it is public or private, secular or religious.

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BRIEF FOR MILLER RESPONDENTS AND REPRESENTATIVE ANNETTE "POLLY" WILLIAMS IN OPPOSITION

The question in this case is whether the Establishment Clause of the First Amendment is a bar to one of the most important experiments in educational reform now underway in the Nation. Under the Milwaukee Parental Choice Program (the "Program" or "MPCP"), some of the poorest urban families in the country are offered the option of attending the accredited school of their choice, whether it is public or private, secular or religious. Their per capita share of the state education fund is made available to pay the cost of attendance. The Wisconsin Supreme Court upheld the constitutionality of the Program. We believe that decision should not be disturbed.

STATEMENT OF THE CASE

A. Factual Background

Respondent Annette "Polly" Williams is a State Representative for the 10th District of Wisconsin, representing inner-city Milwaukee, and was the primary legislative sponsor of the Milwaukee Parental Choice Program. Respondents Marquelle Miller, Cynthia Miller, Angela Gray, Zachary Gray, Shon Richardson, George Richardson, Latrisha Henry, Faye Henry, Reigne Barrett, Valerie Barrett, Candice Williams, Senton Williams, Clintrai Giles, and Sharon Giles (collectively, "Miller respondents") are children and parents of children who reside in Milwaukee and wish to participate in the Program. Respondents were granted leave to intervene as defendants in these consolidated actions.

Because they lack the financial wherewithal to pay for any alternative, the Miller respondents have no choice but to receive their education in the Milwaukee Public Schools ("MPS"), one of the most troubled school systems in the Nation. See generally *Davis* v. *Grover*, 480 N.W.2d 460, 469 (Wis. 1992). During the 1993-94 school year, for instance, dropout rates among

MPS students in grades 9-12 reached 15 percent each year—seven times the rate among students in Wisconsin as a whole. Wis. J.A. 170-174. In fact, only 48 percent of students who enter the Milwaukee Public Schools as freshmen ultimately graduate (*ibid.*), and of those who do finish, some 36 percent squeak by with a "D" average. *Davis*, 480 N.W.2d at 470. This is despite the fact that spending in the Milwaukee Public Schools exceeds $7600 per pupil—well above national averages. Not surprisingly, there is a strong correlation between dropping out of school and future dependence upon public assistance (or worse). As the Wisconsin Supreme Court recently observed, "[h]igh school dropouts comprise 75 percent of the prison population and 80 percent of the families receiving Aid for Families with Dependent Children. Only 55 percent of the male dropouts under age thirty have jobs and only 20 percent have full-time jobs." *Ibid.* In short, "[t]he consequences of school dropouts and inadequate education are shocking." *Ibid.*

These problems are particularly pronounced for members of racial minority groups. For example, while MPS students generally score below the national average on basic skills tests, "minority students score dramatically below the average." *Davis*, 480 N.W.2d at 470. And while MPS students' grade-point average (on a 4.0 scale) generally is 1.60, the average for African-American students is just 1.31. See MILWAUKEE PUBLIC SCHOOLS, INDICATORS OF EDUCATIONAL EFFECTIVENESS (1990). Given that some two-thirds of MPS students are racial minorities, Milwaukee's high dropout rates have a disproportionate racial impact as well. See Wis. J.A. 170-174.

The troubled condition of Milwaukee's public education system was not lost on Wisconsin Democratic Representative Annette "Polly" Williams, a respondent herein whose district includes many of the families that are caught in the embattled Milwaukee Public Schools. Representative Williams came to understand school choice as a tool of "empowerment of low-

income families and specifically black empowerment." See Carol Innerst, *Idiosyncracies of a School Choice Icon*, WASH. TIMES, Sept. 24, 1995, at B3. See also Donald Lambro, *Liberal Embraces Vouchers*, WASH. TIMES, April 2, 1990, at A8. In 1989, with support from Governor Tommy Thompson, Representative Williams—dubbed the "Rosa Parks of School Choice"[1]—introduced legislation entitled the Milwaukee Parental Choice Program. Shortly thereafter, the legislature enacted it.

The original Program permitted up to 1.5 percent of MPS students to use their share of the state education fund to attend any public or private secular[2] school in Milwaukee, provided the school satisfied certain requirements such as compliance with state and federal antidiscrimination law (42 U.S.C. § 2000d), satisfaction of various performance criteria, and submission to financial and performance audits. Pet. App. 5a-6a. In order to qualify for the Program, a student had to be a member of a family whose income did not exceed 1.75 times the federal poverty level, and either to be enrolled in the Milwaukee Public Schools, attending a private school under the Program, or not enrolled in school during the previous year. *Id.* at 5a. Each eligible student received assistance equal to the state aid to which the MPS would have been entitled under state aid

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[1] Innerst, *supra*.

[2] In this brief, we will use the terms "secular" and "religious" rather than the terms "nonsectarian" and "sectarian." The term "sectarian" is typically pejorative, carrying the connotation of "bigoted." Funk & Wagnalls, NEW INTERNATIONAL DICTIONARY OF THE ENGLISH LANGUAGE 1137 (1987) (defining "sectarian" as "[p]ertaining to a sect; bigoted"). The dictionary notes that both "sect" and "denomination" refer to "an organized body of believers distinct in doctrine or practice," but that "*sect* is an opprobrious and *denomination* an honorable term for the same body." *Ibid.* We believe that neutral terminology is more fitting.

distribution formulae had the student attended a public school. Under the original plan, the State made payments directly to participating schools. *Id.* at 6a.

In *Davis* v. *Grover*, 480 N.W.2d 460 (Wis. 1992), a group of plaintiffs (some of whom are petitioners here) challenged the original Program on various state constitutional theories. The Wisconsin Supreme Court sustained the original Program against all claims.

Low-income parents in the community regarded the original Program as a tremendous success. During the 1994-95 school year, the Program enabled approximately 800 students to attend approximately one dozen secular private schools. By 1995-96, the Program grew to include roughly 1600 pupils attending roughly 17 secular schools. Pet. App. 7a. By the time of the injunction that suspended implementation of the amended Program, some 4000 MPS students had applied to attend private schools under the Program—far more than the number allowed under the Program's original terms, and more than Milwaukee's secular private schools could accommodate.

In response to this groundswell of interest, the legislature extended the Program in 1995 to encompass private religious schools and increased tenfold—to 15 percent—the number of MPS students allowed to participate. Pet. App. 7a.[3] As a result of these changes, "[t]he amended MPCP, in conjunction with existing state educational programs, gives participating parents the choice to send their children to a neighborhood public school, a different public school within the district, a specialized public school, a private nonsectarian school, or a private

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[3] The State also repealed the original Program's limitation that no more than 65 percent of a private school's enrollment consist of MPCP participants. Pet. App. 8a.

sectarian school." *Id.* at 26a.[4] In short, "[t]he amendments to the program greatly expand[ed] not only the number of students who are allowed to participate, but also the number of private schools in the City of Milwaukee which may now accept students in the program." *Id.* at 65a.

When the legislature amended the Program to include religious schools, it also made a number of related changes to reduce the potential for entanglement. For example, the legislature eliminated the special audit and performance evaluation requirements in the original Program. Pet. App. 7a. Consistent with state law prior to enactment of the Program, however, "[p]articipating private schools [remained] subject to performance, reporting, and auditing requirements, as well as to applicable nondiscrimination, health, and safety obligations." *Id.* at 29a-30a.

The legislature also modified the payment mechanism used in the Program. Under the provisions of the original legislation, the State distributed aid directly to participating schools. Following the 1995 amendments, the State cuts a check to the parents (or guardians) of eligible students, who in turn are required to "restrictively endorse the check for the use of the private school." Wis. Stat. § 119.23(4). Moreover, a separate amendment established an "upper limit" on the amount of per-student assistance that the State will provide to each parent. Pet. App. 65a. Whereas state assistance to private schools formerly was tied solely to levels of MPS per-student aid, the State now will pay only the *lesser* of MPS per-student aid or the private school's "operating and debt service cost per pupil that

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[4] As noted by the court below, "[t]he participating private schools must select on a random basis the students attending their schools under the amended program, except that they may give preference to siblings already accepted in the schools" if demand outstrips the number of spaces in the school. Pet. App. 25a.

is related to educational programming." Wis. Stat. § 119.23(4). See Pet. App. 7a-8a.

Finally, the 1995 amendments included an "opt-out" provision that prohibits participating private schools from requiring "a pupil attending the private school under [the Program] to participate in any religious activity if the pupil's parent or guardian submits to the pupil's teacher or the private school's principal a written request that the pupil be exempt from such activities." Wis. Stat. § 119.23(7)(c); see Pet. App. 8a, 25a.

The Miller respondents are economically disadvantaged parents and children who have experienced first hand the difficulties of obtaining an academically and personally satisfying education in the Milwaukee Public Schools. For both religious and nonreligious reasons, they desire to enroll in religious schools under the amended Program. Respondent Cynthia Miller, for example, believes that a religious educational environment will be "more orderly and disciplined" than the environment in her son Marquelle's MPS school. Wis. J.A. 306, ¶ 4. Respondent Valerie Barrett echoes the Millers' concerns, and seeks to enroll her children in religious schools because "public schools, and even nonsectarian private schools, do not provide [her] children with the educational environment" and "moral base" that would best facilitate their "curricul[ar] and academic achievement." *Id.* at 310-311, ¶ 4. The Miller respondents, of course, are but a handful of the many thousands of families who otherwise would have no alternative to the MPS, and who depend on the Milwaukee Parental Choice Program to obtain an education that satisfies their needs and aspirations. As a result of this lawsuit, these families have been kept waiting more than three years for the Program to become a reality.

B. Proceedings Below

In August 1995, shortly after the Program's enactment, petitioners filed these two lawsuits in Wisconsin state court, alleging that the Program violates the Establishment Clause of the United States Constitution as well as various provisions of the Wisconsin Constitution.[5] The trial court consolidated the actions, and two groups of private parties—including the Miller respondents—were granted leave to intervene on the side of the state defendants.

The Wisconsin Supreme Court assumed original jurisdiction over the matter and stayed further proceedings in the trial court. After preliminarily enjoining implementation of the Program, an equally divided court dismissed the suit and lifted the stay on proceedings in the trial court. Three justices held that petitioners failed to demonstrate a constitutional violation under either the Establishment Clause or the Wisconsin Constitution, and three justices voted to invalidate the Program solely on state constitutional grounds. See Pet. App. 190a-191a. No member of the court held that the Program violated the Establishment Clause. *Ibid.*

Upon return to the trial court, the parties filed cross motions for summary judgment. Principally citing Article I, § 18 of the Wisconsin Constitution, Wisconsin's own religion clause, the court granted petitioners' motion for summary judgment and invalidated the amended Program. Pet. App. 188a. Like the three dissenting justices on the Wisconsin

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[5] Petitioners NAACP, et al., filed a subsequent lawsuit, in which they raised the additional claim that the Program violates the equal protection provisions of the Fourteenth Amendment and Wisconsin Constitution. Those claims were rejected by the court below (see Pet. App. 52a-56a) and are not raised in the Petition. Pet. 6 n.2.

Supreme Court, however, the trial court rested its decision on the state constitution. *Ibid.*

Relying solely upon Article I, § 18 of the Wisconsin Constitution, the court of appeals affirmed the trial court's decision. The court rejected the State's argument that federal Establishment Clause jurisprudence controlled its analysis of the Wisconsin Constitution, stating that it is "settled law" that Article I, § 18 "goes significantly further than the First Amendment in its prohibition of state support or benefit for religion." Pet. App. 75a. Citing "recent Wisconsin precedents which more rigorously analyze the religious benefit issue," the court of appeals ultimately "conclu[ded] that the amended program violates Article I, section 18 of the Wisconsin Constitution because it directs the payment of money from the state treasury for the benefit of religious seminaries." *Id.* at 89a, 85a.

The Supreme Court of Wisconsin reversed. The court relied on the three-part test of *Lemon* v. *Kurtzman*, 403 U.S. 602, 612-614 (1971), under which a law violates the Establishment Clause if it lacks a secular purpose, has a primary effect of either advancing or inhibiting religion, or leads to an excessive entanglement of church and state. The court noted that *Lemon* has been subject to criticism, but explained that "[u]ntil a majority of the Supreme Court directly holds otherwise, * * * we continue to apply the *Lemon* test." Pet. App. 14a n.5.

The court had no difficulty concluding that "the purpose of the state legislation is secular in nature." Pet. App. 14a. "The purpose of the program," the court explained, "is to provide low-income parents with an opportunity to have their children educated outside of the embattled Milwaukee Public School system." *Id.* at 14a-15a. "The propriety of providing educational opportunities for children of poor families in the state," the court added, "goes without question." *Id.* at 15a.

Turning to *Lemon*'s second prong—the effects prong—the court derived its analysis from "the cumulative criteria developed over the years and appl[ied] to a wide range of educational assistance programs challenged as violative of the Establishment Clause." Pet. App. 16a. The court carefully traversed this Court's modern establishment decisions, beginning with *Everson* v. *Board of Education*, 330 U.S. 1 (1947), and culminating in *Agostini* v. *Felton*, 117 S. Ct. 1997 (1997), and reasoned that those cases

> establish[] the general principle that state educational assistance programs do not have the primary effect of advancing religion if those programs provide public aid to both sectarian and nonsectarian institutions (1) on the basis of neutral, secular criteria that neither favor nor disfavor religion; and (2) only as a result of numerous private choices of the individual parents of school-age children.

Pet. App. 25a. "The amended MPCP," the court held, "is precisely such a program." *Ibid.*

First, "eligibility for benefits under the amended MPCP is determined by 'neutral, secular criteria that neither favor nor disfavor religion.'" Pet. App. 25a (citing *Agostini*, 117 S. Ct. at 2014). Program beneficiaries are "selected on a random basis" from among children who "reside in Milwaukee, attend public schools (or private schools in grades K-3) and meet certain income requirements." *Ibid.* Moreover, "beneficiaries are eligible for an equal share of per pupil public aid regardless of the school they choose to attend." *Id.* at 26a. Thus, the court below explained that "[a] student qualifies for benefits under the amended MPCP not because he or she is a Catholic, a Jew, a Moslem, or an atheist; it is because he or she is from a poor family and is a student in the embattled Milwaukee Public Schools." *Id.* at 27a.

Similarly, "[p]articipating private schools are also selected on a religious-neutral basis and may be sectarian or nonsectarian." Pet. App. 25a. In short, the court held, because students and their families may choose from "a wide range of school choices—mainly public, but some private or religious" (*id.* at 26a n.16), the Program "provides a neutral benefit to beneficiaries selected on religious-neutral criteria" and "neither leads to 'religious indoctrination' nor 'creates [a] financial incentive for students to undertake sectarian education.'" *Id.* at 27a (citations omitted).

Second, the court explained that "[a]ny aid provided under the amended MPCP that ultimately flows to sectarian private schools * * * does so 'only as a result of genuinely independent and private choices of aid recipients.'" Pet. App. 27a (quoting *Witters* v. *Washington Dep't of Servs.*, 474 U.S. 481, 487 (1986)). The court rejected the argument that the Program was invalid merely because "the State sends the checks directly to the participating private school and the parents must restrictively endorse the checks to the private schools." *Id.* at 28a. The important point, the court held, is that "[a]s with the programs in *Mueller* and *Witters*, not one cent flows from the State to a sectarian private school under the amended MPCP except as a result of the necessary and intervening choices of individual parents." *Ibid.* In this regard, the court observed that the Program "places on equal footing options of public and private school choice, and vests power in the hands of parents to choose where to direct the funds allocated for their children's benefit." *Ibid.*

The court considered and rejected petitioners' argument that *Committee for Public Education* v. *Nyquist*, 413 U.S. 756 (1973), requires invalidation of the Program under *Lemon*'s second prong. Pet. App. 18a-19a & n.9. The court explained that there are "significant distinctions" between the amended

Program and the program invalidated in *Nyquist*. *Id.* at 19a n.9. Most importantly, the court stated (*ibid.*):

> In *Nyquist*, each of the facets of the challenged program directed aid exclusively to private schools and their students. The MPCP, in contrast, provides a neutral benefit to qualifying parents of school-age children in Milwaukee Public Schools. Unlike the program in *Nyquist*, the only financially-qualified Milwaukee students excluded from participation in the amended MPCP are those in the fourth grade or higher who are already attending private schools. The amended MPCP, viewed in its surrounding context, merely adds religious schools to a range of pre-existing educational choices available to MPS children. This seminal fact takes the amended MPCP out of the *Nyquist* construct and places it within the framework of neutral education assistance programs.

Finally, the court concluded that the Program "will not create an excessive entanglement between the State and religion." Pet. App. 29a. The court noted that the Program's performance, reporting, and auditing requirements, as well as applicable nondiscrimination, health, and safety obligations, "already exist" under prior law and "do not create excessive entanglement merely because they are part of the amended MPCP's requirements." *Id.* at 29a-30a. The court went on to conclude that "[t]he program does not involve the State in any way with the schools' governance, curriculum, or day-to-day affairs." *Id.* at 30a. Thus, the "'[r]outine regulatory interaction'" required by the Program does not entail "the authority to impose a 'comprehensive, discriminating, and continuing state surveillance' over the participating sectarian private schools" or even "approach the level of constitutionally impermissible involvement." *Id.* at 29a, 30a (citations omitted).

Because the court concluded that the Program did not violate the Establishment Clause, it was required to consider petitioners' state constitutional challenges. The court rejected those challenges as well, with two justices dissenting and adopting by reference the court of appeals' analysis as their own. Pet. App. 58a. No court or judge during the entire course of this litigation has reached the conclusion that the Program violates the Establishment Clause of the First Amendment.[6]

REASONS FOR DENYING THE PETITION

The petition for certiorari rests almost entirely on the claim that the decision below is in "direct and irreconcilable conflict" with *Committee for Public Education* v. *Nyquist*, 413 U.S. 756 (1973). Pet. 10, 11, 13. But the Wisconsin Supreme Court carefully considered *Nyquist* and correctly concluded that it is distinguishable. Pet. App. 18a-19a. Indeed, petitioners' assertion that this case "is on all fours with *Nyquist*" (Pet. 12), and accordingly that "this is an open-and-shut case" (*id.* at 15), is based on a misreading of *Nyquist* and a misunderstanding of the nature of the Milwaukee Parental Choice Program. Perhaps more significantly, if the court below had followed petitioners' mistaken notion of Establishment Clause doctrine, it would have *created* a conflict with a long line of this Court's cases recognizing the legitimacy of government programs that aid religious and secular institutions on a neutral and evenhanded basis through the independent choices of private individuals. And it would have set the Establishment Clause on a collision course with other clauses of the First Amendment, which not only do not command, but positively forbid, discrimination against

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[6] On September 1, 1998, the day after the Petition for Certiorari was filed, the Wisconsin Supreme Court issued an order granting the motion of respondents Parents for School Choice to withdraw a motion for clarification of certain state law issues. We agree with petitioners that this order does not affect this Court's jurisdiction.

individuals or groups on the basis of their religious character or speech.

Petitioners' policy arguments are equally unavailing. Fundamentally, those arguments are based on the assumption that the purpose of the state's education fund is to benefit public *schools*, rather than to educate *children*. The First Amendment was not written to protect the exclusive emoluments of the public school system, which did not even exist at the time of the Framing. The people of Wisconsin are entitled to experiment with the theory that competition and choice will improve the previously dismal performance of schools available to the children of inner-city Milwaukee. If the court below had blocked the Parental Choice experiment in the name of a rigid and outmoded interpretation of the federal Constitution, this case might indeed be certworthy. But the sole consequence of the decision below is to allow one State to engage in a promising experiment in educational reform, for the benefit of some of the neediest children in America, in a manner entirely consistent with the values of pluralism, diversity, and choice that are enshrined in the First Amendment. The Program may well succeed in improving the educational opportunities of these children, in which case other States will probably follow Wisconsin's lead. It may fail, in which case we will have learned from the experience. But there is no reason for this Court to stop the experiment before it has had a fair test.

A. The Wisconsin Supreme Court Correctly Distinguished *Nyquist*

Committee for Public Education v. *Nyquist*, 413 U.S. 756 (1973), involved a small program of tax benefits and tuition grants for the benefit of low-income parents whose children attended nonpublic schools. *Id.* at 765-767. The Court held that this program violated the Establishment Clause. The opinion

contains dicta, ignored or repudiated in later cases,[7] that conflict with the reasoning of the court below. The *holding* in *Nyquist*, however, rested on the fact that the program was targeted exclusively to students attending nonpublic schools. *Id.* at 780-783 & n.38. The Court differentiated between programs in which aid flows to "*all* schoolchildren" and those in which aid is restricted to students who choose to attend private schools, a class predominantly made up of religious schools. *Id.* at 782-783 n.38. See *Mueller* v. *Allen*, 463 U.S. 388, 398 (1983) (emphasis in original) (explaining *Nyquist* on the ground that the tuition grants in *Nyquist* were "provided only to parents of children in *nonpublic* schools").

This shows why petitioners' claim of an irreconcilable conflict with *Nyquist* is unfounded. As petitioners concede, the Milwaukee Parental Choice Program "'provide[s] public aid to

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[7] Language in the *Nyquist* opinion implied that no program of assistance to education may be extended to nonpublic schools "[i]n the absence of an effective means of guaranteeing that the state aid derived from public funds will be used exclusively for secular, neutral, and nonideological purposes." 413 U.S. at 780. That language was needlessly broad for decision of the *Nyquist* case, which involved a program of assistance directly exclusively to private schools. As we explain in detail below, subsequent cases make clear that this restriction does not apply to programs in which the aid is given on the basis of neutral criteria and is made "available only as a result of numerous, private choices of individual parents of school-age children." *Mueller* v. *Allen*, 463 U.S. 388, 399 (1983); see also *Widmar* v. *Vincent*, 454 U.S. 263, 273-275 (1981); *Witters* v. *Washington Dep't of Servs.*, 474 U.S. 481, 488 (1986); *Zobrest* v. *Catalina Foothills Sch. Dist.*, 509 U.S. 1, 8 (1993); *Rosenberger* v. *Rector & Visitors of Univ. of Virginia*, 515 U.S. 819, 839 (1995); *Cf. Bowen* v. *Kendrick*, 487 U.S. 589 (1988) (where grants are made on a discretionary basis, grantees must use the funds exclusively for secular purposes).

both sectarian and nonsectarian institutions * * * on the basis of neutral, secular criteria that neither favor nor disfavor religion.'" Pet. 13 (quoting Pet. App. 25a). Under the Program, the state's per capita subsidy for education goes to whatever school the student and her family choose—public, secular private, or religious private—on a wholly neutral basis.[8] If they choose to attend a private school, their per capita subsidy is made available to them to pay for that school; if they choose to attend a public school, their per capita subsidy goes to the MPS. That was not true in *Nyquist*, where the tuition reimbursement program was available only to families with children in nonpublic schools. 413 U.S. at 782-783 n.38.

Petitioners relegate discussion of this crucial distinction to a single footnote. Pet. 13-14 n.10. The footnote reads in its entirety:

> Although, as the Wisconsin Supreme Court noted, the New York voucher program "directed aid exclusively to private schools and their students," App. 19a n.9, the same is true here: the Amended MPCP also provides aid "exclusively to private schools and their students"; indeed, the very point of the Program is to enable low-income students in Milwaukee to enroll in private schools instead of remaining in the Milwaukee Public Schools.

Petitioners' description of the Milwaukee Program is flatly incorrect. In truth, as a result of the 1995 amendments,

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[8] Moreover, the Program must be viewed in context, as one of a number of provisions of Wisconsin education law that "give[] participating parents the choice to send their children to a neighborhood public school, a different public school within the district, a specialized public school, a private nonsectarian school, or a private sectarian school." Pet. App. 26a.

Wisconsin now directs its state aid neutrally to all eligible students attending accredited schools in Milwaukee, without discriminating one way or the other. The "very point" of the Program was not merely "to enable low-income students in Milwaukee to enroll in private schools" (Pet. 14 n.10); it was *to give them a choice*.

Petitioners do not explain their reasoning. But it must be based on timing. If, when the State first started to subsidize education sometime in the last century, it had enacted a program that allocated aid to accredited schools of the students' choice, identical to the Milwaukee Parental Choice Program, petitioners could never contend the benefits were "directed exclusively" to private schools. The fact that the Wisconsin system of educational finance was enacted in two steps—first exclusively to public schools and later to students at all accredited schools—cannot logically make a difference.

In sum, to the extent that the petition relies on a supposed conflict between the decision of the Wisconsin Supreme Court and this Court's *Nyquist* decision, it has failed to provide a reason for the Court to grant certiorari.

B. The Decision Below Is Consistent With This Court's Precedents Upholding Programs That Are Neutral And Indirect

Moreover, as the court below recognized (Pet. App. 19a), *Nyquist* cannot be read in isolation from other cases setting forth this Court's establishment jurisprudence. This is particularly true where, as here, the Court's decisions have evolved over time, both as to general doctrine and as to specific results. See *Agostini* v. *Felton*, 117 S. Ct. 1997 (1997) (holding that some school aid precedents had been undermined by later decisions). The Wisconsin Supreme Court properly considered precedents rendered after *Nyquist* and correctly concluded that they supported the constitutionality of the Program. In reaching that

conclusion, the court relied principally on *Mueller* v. *Allen*, 463 U.S. 388 (1983); *Witters* v. *Washington Dep't of Servs.*, 474 U.S. 481 (1986); *Zobrest* v. *Catalina Foothills Sch. Dist.*, 509 U.S. 1 (1993); *Rosenberger* v. *Rector & Visitors of Univ. of Virginia*, 515 U.S. 819 (1995); and *Agostini*, *supra*. See Pet. App. 19a-28a. The court's analysis of those precedents cannot be faulted. As the late Justice Brennan stated, summarizing modern Establishment Clause doctrine, when a "subsidy is conferred upon a wide array of nonsectarian groups as well as religious organizations in pursuit of some legitimate secular end, the fact that religious groups benefit incidentally does not deprive the subsidy of the secular purpose and primary effect mandated by the Establishment Clause." *Texas Monthly, Inc.* v. *Bullock*, 489 U.S. 1, 14-15 (1989) (plurality opinion).

Perhaps the clearest precedent in support of the decision below is *Witters*. In *Witters*, the Court unanimously held that public funds could be used to pay the tuition of a student at a Bible college for training for the ministry, pursuant to a program of vocational assistance for the blind. Justice Marshall's opinion for the Court identified three aspects of the program as "central to our inquiry" (474 U.S. at 487), and these factors still stand as this Court's most pertinent statement of the meaning of the Establishment Clause in this context.

First, Justice Marshall noted that funding goes to the recipient institution only through the choice of the individual student. "Any aid provided under Washington's program that ultimately flows to religious institutions does so only as a result of the genuinely independent and private choices of aid recipients." 474 U.S. at 487. Second, he noted that "Washington's program is 'made available generally without regard to the sectarian-nonsectarian, or public-nonpublic nature of the institution benefitted,' and is in no way skewed towards religion." *Id.* at 487-488 (quoting *Nyquist*, 413 U.S. at 782-783 n.38). Third, he stressed that the Washington program "creates

no financial incentive for students to undertake sectarian education." *Id.* at 488. Their benefits are neither "greater [n]or broader" if they "apply their aid to religious education" than if they choose to attend educational programs at public or other secular institutions. *Ibid.* "[T]he fact that aid goes to individuals means that the decision to support religious education is made by the individual, not by the State." *Ibid.*

With reference to these factors, the present case is on all fours with *Witters*. Petitioners concede that any aid provided under the Wisconsin program that ultimately flows to religious institutions does so only as a result of the genuinely independent and private choices of parents in Milwaukee. Pet. 13. Moreover, the Program makes aid available without regard to the religious-nonreligious, or public-nonpublic nature of the school chosen by the families involved. See *ibid.* (quoting App. 25a; ellipses in original) (the Program "'provide[s] public aid to both sectarian and nonsectarian institutions * * * on the basis of neutral, secular criteria that neither favor nor disfavor religion'"). Finally, the Milwaukee Parental Choice Program, like the vocational assistance program in *Witters*, "creates no financial incentive for students to undertake sectarian education." 474 U.S. at 488. The state aid that is allocated for the benefit of each child eligible to participate in the Program is neither "greater [n]or broader" if students "apply their aid to religious education" than if they attend a public school or a private secular school. *Ibid.* Whatever accredited school they attend, the state will pay their equal per-student share.[9] As Justice Marshall concluded in *Witters*, "the fact that aid goes to

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[9] Under some circumstances (where the cost of nonpublic education is less than the per-student allotment), students attending nonpublic schools will receive less aid than their public school counterparts. Under no circumstances may they receive more.

individuals means that the decision to support religious education is made by the individual, not by the State." *Ibid.*

Justice Marshall also stated that "nothing in the record indicates that * * * any significant portion of the aid expended under the Washington program as a whole will end up flowing to religious education," noting that Mr. Witters was apparently the only recipient of aid under the program who used his aid for religious education. 474 U.S. at 488. As Justice Powell pointed out in his concurrence, however, reliance on this factor was inconsistent with *Mueller* v. *Allen*, 463 U.S. 388 (1983). 474 U.S. at 490-491 & n.3 (Powell, J., joined by Burger, C.J., and Rehnquist, J.). Five Justices agreed with Justice Powell on this point. See *id.* at 490 (White, J., concurring); *id.* at 493 (O'Connor, J., concurring).

In any event, this Court has recently repudiated the suggestion that "the constitutionality of an aid program depends on the number of sectarian school students who happen to receive the otherwise neutral aid." *Agostini*, 117 S. Ct. at 2013. The relative number of students choosing religious and secular education under the Wisconsin program, which petitioners stress (Pet. 3-4), is therefore irrelevant. Nevertheless, we would note that, under the Program, well over 85 percent of state education funds in Milwaukee will go to nonreligious schools, since only 15 percent of the students are permitted to use their share of the educational fund to attend nonpublic schools, and a significant portion of them will choose secular schools.

Thus, if the Court below had heeded petitioners' legal argument and had struck down the Milwaukee Parental Choice Program in order to avoid a spurious conflict with *Nyquist*, it would have created a true conflict with *Witters*.

In its most recent decision regarding public aid to education, this Court articulated "three primary criteria we currently use to evaluate whether government aid has the effect

of advancing religion: it does not result in governmental indoctrination; define its recipients by reference to religion; or create an excessive entanglement." *Agostini*, 117 S. Ct. at 2016. It is telling that petitioners do not even refer to these three criteria, preferring to cite inapposite cases more than 20 years old. See Pet. 14 n.11. Under these criteria, there can be little doubt that the court below was correct in upholding the Wisconsin program. Since no governmental employees are engaged in providing education under the Program (outside of the public schools), there is no danger of "governmental indoctrination." Any "indoctrination" (*i.e.*, education in the moral and religious traditions of the family) is the result of a constitutionally protected parental choice of private education. See *Pierce* v. *Society of Sisters*, 268 U.S. 510 (1925). The Program does not define its recipients by reference to religion. The criteria for participation are entirely neutral and objective, based on income, and students attending all accredited schools are eligible without reference to the religious or secular character of the school. Finally, petitioners do not appear to claim that the Program entails excessive entanglement. No new regulatory requirements are imposed on the school, beyond those already applicable under prior law. See Pet. App. 29a-30a.

Again, if the Court below had heeded petitioners' legal argument and had struck down the Parental Choice Program in order to avoid a spurious conflict with *Nyquist*, it would have created a true conflict with this Court's most recent articulation of applicable constitutional standards in *Agostini*.

For similar reasons, petitioners' position would create conflicts with other controlling precedents: *Mueller*, *supra* (upholding a tax credit that could be used for educational expenses, including tuition for nonpublic schools); *Zobrest*, 509 U.S. at 8 (upholding provision of sign language interpreter for student attending a religious school, on the ground that

"government programs that neutrally provide benefits to a broad class of citizens defined without reference to religion are not readily subject to an Establishment Clause challenge just because sectarian institutions may also receive an attenuated financial benefit"); *Rosenberger*, *supra* (upholding grant of student activity funds to religious student groups on a neutral basis).[10]

It is revealing that petitioners' only claim of conflict with lower courts (Pet. 15 & n.12) is based on four state supreme court decisions from 1955, 1973, and 1974, long before *Mueller*, *Witters*, *Zobrest*, *Rosenberger*, and *Agostini* clarified the law. This serves to confirm that the position taken by petitioners is an anachronism, unsupported by decisions in the last quarter century.

C. If Adopted, Petitioners' Argument Would Create Needless Conflict Between The Establishment Clause And Other Parts Of The First Amendment

A further reason to reject petitioners' construction of the Establishment Clause is that it would compel discrimination against students on the basis of the religious teaching at the school of their choice. According to petitioners, the state may not defray the cost of an education (however effective it may be in objective educational terms) unless there is an "effective means of guaranteeing that the state aid derived from public

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[10] Petitioners suggest that the Parental Choice Program closely resembles the Community Education Program held unconstitutional in the portion of *School District of Grand Rapids* v. *Ball*, 473 U.S. 373 (1985), not overruled in *Agostini*. Pet. 18-19. But in that program, the nature, extent, and distribution of the aid was determined by the Director of the program, a public official—not by the independent choices of students and their families. 473 U.S. at 377. The Community Education Program thus was neither indirect nor necessarily neutral—the two key features of the Milwaukee Parental Choice Program for constitutional purposes.

funds w[ould] be used exclusively for secular, neutral, and nonideological purposes." Pet. 12 (quoting *Nyquist*, 413 U.S. at 780). In practical terms, this means that the state must discriminate against otherwise eligible schools on the basis of the religious content of their teaching.

Petitioners' position is at odds with the fundamental logic of the Free Exercise Clause, which prohibits discrimination on the basis of religion. *Church of Lukumi Babalu Aye* v. *City of Hialeah*, 508 U.S. 520, 532 (1993) ("[a]t a minimum, the protections of the Free Exercise Clause pertain if the law at issue discriminates against some or all religious beliefs"); *Employment Division* v. *Smith*, 494 U.S. 872, 877 (1990) (under the Free Exercise Clause, the government may not "impose special disabilities on the basis of religious views or religious status"); *Jimmy Swaggart Ministries* v. *Board of Equalization*, 493 U.S. 378, 390 (1990) (to "single out" religious activity "for special and burdensome treatment" would violate the Free Exercise Clause); *Hobbie* v. *Unemployment Appeals Comm'n*, 480 U.S. 136, 148 (1987) (Stevens, J., concurring) (the Free Exercise Clause "protect[s] religious observers against unequal treatment"). To deny an otherwise neutral and generally available benefit to an individual on the basis of her exercise of religion is presumptively unconstitutional—the equivalent of imposing a fine for engaging in the religious practice. See *Sherbert* v. *Verner*, 374 U.S. 398, 404 (1963). The course proposed by petitioners thus raises serious risks of creating a constitutional problem where none now exists.

To make matters worse, petitioners' position would also create serious constitutional doubts under the Free Speech Clause. The religious activity that takes place in religious schools is, after all, speech. Teaching is speech. And the government may not exclude individuals or groups from the benefits extended to similarly situated persons on the basis of

the religious viewpoint of their speech. *Rosenberger* v. *Rector & Visitors of Univ. of Virginia*, 515 U.S. 819, 830 (1995); *Lamb's Chapel* v. *Center Moriches Sch. Dist.*, 508 U.S. 384 (1993); *Widmar* v. *Vincent*, 454 U.S. 263 (1981).

In short, petitioners would put the Establishment Clause on a collision course with other provisions of the Constitution. See *Peter* v. *Wedl*, 1998 WL 612747 (8th Cir. Sept. 15, 1998) (holding, under Free Exercise, Free Speech, and Equal Protection Clauses, that the state may not provide assistance to students attending secular private schools while refusing to provide comparable assistance to students attending religious private schools). That is an especially improbable reading of related provisions of the same Amendment. It makes far more sense to interpret cognate provisions harmoniously and consistently.

The principles espoused by the court below—"neutrality" and "indirection"—are central to such a harmonious interpretation. If the state dispenses benefits for a secular purpose, on the basis of neutral and objective criteria, then it cannot be said that the government favors, endorses, or induces religious choices. And if the aid flows to religious institutions only as a result of numerous choices made by individuals, then any religious effect cannot be attributed to the government. *Cf. Jackson* v. *Metropolitan Edison Co.*, 419 U.S. 345, 357 (1974) (holding that a private party's "exercise of the choice allowed by state law" does not constitute state action "where the initiative comes from it and not from the state"). As the Court explained in *Witters*, "the fact that aid goes to individuals means that the decision to support religious education is made by the individual, not by the State." 474 U.S. at 488. By contrast, the doctrinal gymnastics petitioners employ as they bob and weave among this Court's precedents bear no relation to any discernible purpose of the First Amendment. If the Establishment Clause is interpreted—as it was in *Everson*, *Allen*,

Walz, *Widmar*, *Mueller*, *Witters*, *Zobrest*, *Lamb's Chapel*, and *Rosenberger*—to permit neutral treatment of religious choices through indirect aid to religious institutions, then conflicts with the Free Exercise Clause and the Free Speech Clause are minimized.

D. Petitioners' Argument That Certiorari Should Be Granted To Advance The "National Policy Debate" Should Be Rejected

Petitioners repeatedly sound the refrain that the Parental Choice Program will "divert millions of tax dollars from the Milwaukee Public Schools" to be used for private schools. Pet. 3, 5, 20. This choice of words is highly revealing. It suggests that petitioners view the state education fund as serving the purpose of subsidizing a particular set of *schools*. We believe, and the Wisconsin legislature evidently agreed, that the purpose of the education fund is to provide the best possible *education* for the *children* of the State. If state taxpayers' money is being used for that purpose, it is not being "diverted."

Educational choice raises legitimate issues of educational policy, about which reasonable people disagree. The premise of the Wisconsin program is that, when the educational system has manifestly failed the children, as it has in Milwaukee, it is time to explore alternatives. Supporters of educational choice believe that the past policy, in which the public school establishment was given a protected monopoly over the education fund, has stifled innovation and created a sclerotic, unresponsive, inefficient bureaucracy—with poor, minority, and inner-city children bearing the brunt of the system's inadequacies. See generally John E. Chubb & Terry M. Moe, POLITICS, MARKETS, AND AMERICA'S SCHOOLS (Brooking Inst. 1990); James S. Coleman et al., HIGH SCHOOL ACHIEVEMENT: PUBLIC, CATHOLIC, AND PRIVATE SCHOOLS COMPARED (1982). Researchers predict that introducing choice and competition will enable parents to obtain a superior education for their children

and stimulate improvements for the entire system. See Chubb & Moe, *supra*, at 185-229; Coleman, *supra*, at 122-178; James S. Coleman & Thomas Hoffer, PUBLIC AND PRIVATE HIGH SCHOOLS: THE IMPACT OF COMMUNITIES 57-96 (1987); Anthony S. Bryk et al., CATHOLIC SCHOOLS AND THE COMMON GOOD 55-78 (1993) (summarizing research data).[11]

To be sure, the argument for educational choice is at present primarily predictive and theoretical, since there has never been a comprehensive program of educational choice in any city in America.[12] But as the Wisconsin legislature recognized, it is a promising source of hope for genuine reform of elementary and secondary education in Milwaukee. The great virtue of the decision below is that it will allow the theory to be tested under the real-world conditions of inner-city Milwaukee, where educational reform is desperately needed. *Cf. Washington* v. *Glucksberg*, 117 S. Ct. 2258, 2292-2293 (1997) (Souter, J., concurring) (explaining why courts should permit legislative experimentation when dealing with "emerging" issues where effects and consequences are "currently unknown").

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[11] Even in the short run, children in public schools (as well as those who choose to attend private schools) will benefit economically from the Milwaukee Parental Choice Program. Since the per-student amount of state aid is less than 40% of the average total cost of educating a student in the Milwaukee Public Schools, *Davis* v. *Grover*, 480 N.W.2d 460, 476-477 (Wis. 1992), the immediate effect of the Program is that the remaining 60%—now over $4500 per student per year—will have the effect of increasing the per-pupil spending in the public schools.

[12] Educational choice is the norm in other western democracies. See Charles Glenn, CHOICE OF SCHOOLS IN SIX NATIONS (U.S. Dep't of Educ. 1989) (describing the systems in France, the Netherlands, Belgium, Britain, Canada, and West Germany).

Petitioners worry that educational choice plans will "spread like wildfire." Pet. 20 (citation omitted). Much as we applaud the sentiment, we think the prediction is premature. If the Milwaukee experiment works, other States will no doubt follow. But the Milwaukee experiment may not work, in which case we will have learned from the experience. Either way, there is no proper basis for judicial intervention. Petitioners should save their policy arguments for the legislature. This Court should not endorse their effort to put an end to the experiment—nationwide—before it is given a fair chance to succeed.

CONCLUSION

The petition for a writ of certiorari should be denied.

Respectfully submitted.

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